IN THE HIGH COURT OF JUDICATURE AT PATNA
CRIMINAL MISCELLANEOUS No.65934 of 2026

CNR No. BRHC010928552026

Arising Out of PS. Case No.-122 Year-2026 Thana- CHORAUT District- Sitamarhi

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1. Md Neimulla @ Neimullah S/o Md. Mustak R/o Village - Musidha, P.S. - Choraut, Dist. - Sitamadhi.
2. Md. Atiulla @ Atiullah S/o Md. Mustak R/o Village - Musidha, P.S. - Choraut, Dist. - Sitamadhi.
3. Md. Kalimullah @ Kalimullah S/o Late Istak R/o Village - Musidha, P.S. - Choraut, Dist. - Sitamadhi.

... ... Petitioner/s

Versus

The State of Bihar ... ... Opposite Party/s

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Appearance :
For the Petitioner/s : Mr. Rizwanul Jama Khan, Adv.
For the Opposite Party/s : Mrs. Meena Singh, APP.

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CORAM: HONOURABLE MR. JUSTICE RAJ KUMAR

ORAL ORDER

6 15-10-2026 Heard the learned counsel for the petitioners and the learned counsel for the informant as also the learned Additional Public Prosecutor for the State.

2. The petitioners are seeking regular bail in connection with Chorout P.S. Case No. 122 of 2026, registered for the offences punishable under Sections 103(1) and 3(5) of the BNS.

3. The allegation against the petitioners is that they along with other co-accused persons murdered the informant's brother, Md. Abzal and threw his dead body on the road.

4. Learned counsel for the petitioners has submitted that the petitioners have falsely been implicated in the present

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case. He has further submitted that there is no eyewitness to the alleged occurrence and that, no one has seen the deceased in the company of the petitioners prior to the occurrence. He has next submitted that the post-mortem report does not ascertain the cause of death and the injuries, found on the deceased, were on non-vital parts of the body, i.e., the left and right toes and a finger. He has further submitted that this Court had called for the FSL report and, from perusal of the same, it appears that no poison was detected in the body of the deceased. Learned counsel has also submitted that, as is evident from the CDRs of the petitioners and the deceased, there is no material to establish any contact between the petitioners and the other co-accused persons. Further, there is no evidence to show that the petitioners had talked with the deceased prior to the alleged occurrence. He has contended that the case is based on circumstantial evidence and there is no material on record to connect the petitioners with the alleged occurrence. He has further submitted that the petitioners have clean antecedents and have been in judicial custody since 24.06.2026. The petitioners undertake to cooperate with the trial.

5. On the other hand, the learned APP for the State

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and the learned counsel for the informant have opposed the prayer for bail by pointing out paragraph nos. 7 and 13 of the case diary, from which, it emanates that the petitioners used to threaten the family members of the informant of dire consequences. On a specific query made by this Court as to whether the petitioners had been last seen in the company of the deceased or whether the CDRs of their mobile phones establishes their presence together, no affirmative response came out.

6. Taking into account the entire facts and circumstances of the case, let the petitioners above-named, are directed to furnish bail bond and on doing so, the court below shall release the petitioners on bail on furnishing bail bonds of Rs.10,000/- each with two sureties of the like amount each to the satisfaction of learned J.M.-Ist/ concerned Court, Sitamarhi in connection with Chorout P.S. Case No. 122 of 2026, subject to the following conditions:-

(i) The petitioners shall cooperate in the disposal of trial.

(ii) One of the bailors must be close relatives of the petitioner such as mother, father, brother, sister or wife.

(iii) The petitioners will appear on each and every

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date fixed by the trial court and if, they fail to do so on two consecutive dates, unless they are prevented by extremely adverse circumstances, the learned court below will be at liberty to cancel the bail bond of the petitioners.

(iv) Before release, the learned court below shall verify the criminal antecedent of the petitioners and if they are found involved in any case other than the present one, their bail bond will not be accepted.

(v) It is also made clear that there shall be no delay beyond a period of ten days in verifying the criminal antecedents of the petitioners.

(vi) However, if any material emerges out during course of investigation giving rise to a reasonable suspicion against the petitioners, the informant will be at liberty to approach the learned court below by filing an application for cancellation of bail and if the informant does so, the learned court below shall consider the application of the informant in accordance with law.

(Raj Kumar, J)

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